

Amendment No. 1 to HB0657

Terry
Signature of Sponsor

AMEND Senate Bill No. 619*

House Bill No. 657

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-32-105, is amended by adding the following as a new subsection:

(g)

(1) A provider, who is licensed or registered in this state and who has had an adverse action taken against the provider's license or registration by a relevant board made public pursuant to this section, and such action resulted in an order by that board being issued requiring completion of a program or contract for peer assistance for substance use disorder or substance use treatment, has the right to petition the relevant board following completion of all requirements in the peer assistance or treatment program contract to remove information from the public-facing licensure verification website regarding the adverse action and the order by the relevant board after five (5) years from the completion date of that program or contract indicated in such order.

(2)

(A) The relevant board shall review and make a determination on a removal request submitted pursuant to subdivision (g)(1). If the relevant board approves the request, then that board shall remove the requested information from the public-facing licensure verification website pursuant to this section.

(B) The order remains a public record, as defined in § 10-7-503.

(3) As used in this subsection, "adverse action" means a disciplinary action taken by a licensing board created pursuant to this title.

(4) The division of health related boards is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.